

#	Case Name	Tentative
50	La Paz Village Investors, LLC vs. Orange County Realtors, Inc. 26-01538551	1. Demurrer to Amended Cross-Complaint 2. Motion to Strike Cross-Complaint No Tentative. Parties to Appear.
53	Gianulias vs. Gibson 23-01308044	1. Motion to Quash Service of Summons 2. Motion to Set Aside/Vacate Default No Tentative. Parties to Appear.
57	Diliberto vs. Surgical Care Affiliates, LLC 23-01358521	Motion for Terminating Sanctions The Motion for Terminating Sanctions brought by Defendants Surgical Care Affiliates, LLC and Surgicare of La Veta, Ltd. (dba Newport Coast Surgical Institute) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the Court may impose a terminating sanction against one “engaging in conduct that is a misuse of the discovery process,” via an order dismissing the action. (Code Civ. Proc., § 2023.030, subd. (d)(3).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010, subd. (g).) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (<i>Rodriguez v. WNT, Inc.</i> (2025) 116 Cal.App.5th 791, 810.) “Discovery sanctions should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (<i>Ibid.</i> [internal quotations omitted].)